DOUBLE ISSUE

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TIME

THE 100 MOST INFLUENTIAL PEOPLE

POP-CULTURE PHENOM

MEGAN THEE STALLION

BY TARAJI P. HENSON

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How We Chose the 2020 TIME100

Edward Felsenthal is the Executive Chairman and former Editor-in-Chief of TIME.

We've been doing the TIME 100 list of the world's most influential people for nearly 20 years. But there has never been a year like this. A year of multiple crises, all over the world, all at once.

And so this year's list looks far different than any of us could have predicted just six months ago. The TIME 100 has always been a mirror of the world and those who shape it. While you will certainly find people who wield traditional power on this year's list—heads of state, CEOs, major entertainers—it also includes many extraordinary, lesser-known individuals who seized the moment to save lives, build a movement, lift the spirit, repair the world.

There are, for example, a record number of doctors, nurses and scientists. Among them: German infectious-disease specialist Camilla Rothe, who helped document that this coronavirus could be transmitted by people without symptoms; Chinese researcher Zhang Yongzhen, who mapped in less than 40 hours the genomic sequence of SARS-CoV-2 and was the first to share it publicly; New York nurse Amy O'Sullivan, who treated the first patient to

die from COVID-19 in the state, contracted the virus herself and was back at work within a few weeks; and of course Anthony Fauci, who became in many ways America's doctor.

The list also includes many activists fighting for equality, including Black Lives Matter founders Alicia Garza, Patrisse Cullors and Opal Tometi, who helped build an international movement for racial justice; and Arussi Unda, a feminist leader who helped spearhead a national strike in Mexico to protest gender violence.

Fifty-four of the people on the list are women, more than ever before. Not only were many of the biggest grassroots movements of the year led by women, so were many of the world's most effective responses to COVID- 19. As Texas Senator Ted Cruz writes of Tsai Ing-wen, the President of Taiwan, where fewer than a dozen people (out of 23 million residents) have died of the virus, "the virus can be controlled—without emulating China's drastic policies."

SEE THE FULL LIST

As a rule, the TIME 100 focuses on the living, but looming large over this year's list is the impact of individuals such as Ahmaud Arbery, George Floyd, Breonna Taylor and Tony McDade, whose killings galvanized a reckoning around police brutality and systemic racism;

Aimee Stephens, whose case led to a historic Supreme Court decision protecting the rights of LGBTQ Americans; and Li Wenliang, the Wuhan physician who tried in vain to warn Chinese officials about the coronavirus and later died of it. The issue also includes a memorial to Justice Ruth Bader Ginsburg, including the tribute that fellow Justice Antonin Scalia wrote when she was on the TIME 100 in 2015.

With our staff still working remotely, the process of putting together this year's TIME 100 was also unlike anything we've ever experienced. Led by TIME 100 editorial director Dan Macsai, it is the result of many hundreds of Zooms and Google Meets among many dozens of our global staff, as well as recommendations by TIME 100 alumni.

"We see the TIME 100 as more than a list," says Macsai. "It's a community of hundreds of leaders from across the years and around the world whose visions can guide us and whose achievements can bring us hope."

We invite you to be part of the TIME 100 community as well, through our regular TIME 100 Talks series and other special events. You can sign up for regular updates at time.com/talks-email

This is a year of unimaginable challenges, but it is also an opportunity to re-evaluate and rebuild. I hope you're as inspired as I am by the extraordinary TIME 100 community. Their work challenges each of us to wield our own influence toward a world that is healthier, more resilient, more sustainable and just.

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SEE THE FULL LIST

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Ruth Bader Ginsburg Has Died. She Leaves Behind a Vital Legacy for Women — and Men

On March 15, 2019, legions of Ruth Bader Ginsburg's admirers celebrated her 86th birthday by dropping to the ground and grinding out the Super Diva's signature plank poses on the steps of courthouses around the country.

This unusual tribute to a Supreme Court justice was one of the many ways a new generation has shown the love to the five-foot tall legal giant who made the lives they live possible. But by Sept. 18, her iron will and gritty determination were no longer enough to propel her to court. Ginsburg died on Friday at the age of 87 of complications from metastatic pancreatic cancer, according to a statement released by the Supreme Court.

In the early '70s—after Gloria Steinem was working underground as a Playboy Bunny to expose sexism, and Betty Friedan was writing a feminist manifesto about "the problem with no name"—Ginsburg named the problem, briefed it, and argued it before the Supreme Court of the United States.

She was 39 then, on the receiving end of so much of the discrimination she would work to end, and she was just undertaking her first job as a litigator—as co-director of the Women's Rights Project of the American Civil Liberties Union. In her "very precise" way, as Justice Harry Blackmun put it, she studied title, chapter, clause, and footnote of the legal canon that kept women down and overturned those that discriminated on the basis of sex in five landmark cases that extended the 14th Amendment's equal rights clause to women. In that long, hard slog, she employed some novel devices, using "gender" (so as not to distract male jurists with the word "sex") and representing harmed male plaintiffs when she could find one (to show that discrimination hurts everyone). And she never raised her voice.

When she was done, a widower could get the same Social Security benefits as a woman and a woman could claim the same military housing allowance as a man. A woman could cut a man's hair, buy a drink at the same age, administer an estate, and serve on a jury.

By the time she left the ACLU, and before she donned her first black robe, Ginsburg had brought about a small revolution in how women were treated, wiping close to 200 laws that discriminated off the books. Over the next decades, first as a judge on the U.S. Court of Appeals for the District of Columbia, appointed by President Jimmy Carter in 1980, and then as the second woman on the Supreme Court, appointed by President Bill Clinton in 1993, she would become to women what Thurgood Marshall was to African Americans. She employed the same clause in the 14th Amendment he used to free former slaves to extend protection to the mentally ill who wanted to live outside institutions, gays who wanted to marry, immigrants who lived in fear, and, of course, females: those who wanted to be cadets at the Virginia Military Institute, have access to abortion, and, when pregnant, not be fired if they couldn't perform duties their condition made, temporarily, impossible.

Her fans' courthouse celebration was also a plea for the bionic Ginsburg to carry on, at least until the 2020 election. There was high anxiety when she fell asleep at the State of the Union in 2015 (a case of enjoying a fine California wine brought by Justice Anthony Kennedy to the justices pre-speech dinner) and even more when she missed the court's 2019 opening session in January, her first such absence in 25 years. She hadn't fully recovered from surgery to remove two cancerous nodules from her lungs. But she took her seat as the senior justice next to Chief Justice John Roberts in mid-February, picking up her full caseload. That following summer, she went through radiation to treat a cancerous tumor on her pancreas, her fourth brush with cancer. In July 2020, she announced that cancer had returned yet again. Despite

receiving chemotherapy for lesions on her liver, the 87-year-old reasserted that she was still “fully able” to continue serving on the Supreme Court.

Baton-twirling bookworm

Joan Ruth Bader was born in 1933 in Brooklyn and came of age during the Holocaust, “a first-generation American on my father’s side, barely second-generation on my mother’s … What has become of me could happen only in America,” she said at her confirmation hearing.

True enough, but what would become of her was a long time coming. In an enthralling biography, Jane Sherron De Hart describes schoolgirl Ruth, who twirled a baton but was such a bookworm she tripped and broke her nose reading while walking. Her mother, who convinced her she could do anything, died just before Ruth, the class valedictorian, graduated and headed off to Cornell. There she met the tall, handsome Martin Ginsburg, and married him the minute she graduated Phi Beta Kappa—the first man, she said, who "cared that I had brain." She'd been accepted to Harvard Law, where Marty was already enrolled. She calls meeting Marty "by far the most fortunate thing that ever happened to me."

What happened next is proof of her maxim that a woman can "have it all," just not all at once. Marty was called up to active duty, so instead of studying torts in Cambridge, Ginsburg found herself working as a claims examiner at the Social Security Administration in Fort Sill, Oklahoma—that is, until she was demoted with a pay cut for working while pregnant.

Life threw another wrench into the works when both were back at Harvard with a baby girl, and Marty was stricken with a rare testicular cancer. Ruth gathered notes from his classes and typed up his papers as well as her own, getting along on even less sleep than

your usual new mother, all while being scolded for taking up a man's seat by Dean Erwin Grisold. When her husband graduated and was offered a prestigious job at a white shoe law firm in New York, she gave up her last year at Harvard to finish at Columbia.

Once again, she felt the sting of the discrimination. Despite being the first student ever to serve on both the Harvard and Columbia Law Reviews and graduating at the top of her class, she couldn't get a job at a premier law firm or one of the Supreme Court clerkships that went so easily to male classmates who ranked below her. According to De Hart, Judge Felix Frankfurter fretted a woman clerk might wear pants to chambers. Without bitterness, she calls anger a useless emotion; she noted that in the '50s, "to be a woman, a Jew and a mother to boot—that combination was a bit too much."

Battling discrimination

She didn’t get outwardly angry and only, after many years, got even. She took a lower court clerkship, researched civil procedure (and equality of the sexes in practice) in Sweden and wrote a book on the subject. She returned home to teach at the Newark campus of Rutgers Law, becoming the first adviser for the *Women’s Rights Law Reporter.* Despite being a progressive school, discrimination struck again. She learned she didn’t earn the same as a male colleague because, the dean explained, “he has a wife and two

children to support. You have a husband with a good paying job in New York." No wonder then, when she found herself surprisingly (given her husband's medical history) but happily pregnant again, she took no chances and hid it.

After the birth of her son, James, she became a tenured professor at Columbia, co-authored the first case book on discrimination law, a work in progress as she changed much of it while litigating for the ACLU, until in 1980 she joined the Court of Appeals.

Then, in 1993, President Bill Clinton was elected and he wanted a Cabinet, and by extension a Supreme Court, that looked like America. Ginsburg was on the list, but so were a dozen others and she wasn't at the top.

Even Clinton's deliberations weren't without a peculiar form of discrimination as he worried, "the women are against her." He was right. To the feminists of the '90s—who might be ignored by the White House if it weren't for Ginsburg's decades of opening doors—she was yesterday. The judge methodically chipping away at bias, without burning a bra or tossing a high heel, looked plodding and uninspiring; her friendship with her colleague on the district court, Scalia, looked suspect.

Enter Marty. "I wasn't very good at promotion, but Marty was," she told the late Gwen Ifill, a PBS anchor and managing editor. "He was tireless"—and beloved among lawyers, professors, and politicians. Women came around, reminded that she was a pioneer in their fight to overcome the patriarchy and a steadfast supporter of abortion rights, despite acknowledging in an interview that the country might be politically better off if the states had continued to legalize abortion rather than have Roe v. Wade as a singular target of its foes. Ginsburg was confirmed 96 to 3.

The Great Dissenter

She didn’t disappoint. In one case after another, she asked the right questions (and often the first one), cobbled together majorities and joined in elegantly reasoned opinions: striking down stricter requirements for abortion clinics designed to make the procedure extinct (*Whole Woman’s Health v. Hellerstedt*), and approving gay marriage (*Obergefell v. Hodges*), making the point during oral argument that if you can’t refuse a 70-year-old couple marriage because they can’t procreate, how could you use that excuse to deprive a gay one.

But it was her minority — not her majority — opinions that made her beloved to a new generation of women. As the court tilted right in 2006 after the retirement of Sandra Day O'Connor, Ginsburg made a point of reading, not just filing, her dissents to explain to the majority why they were wrong in hopes that "if the court has a blind spot today, its eyes will be open tomorrow."

Here was a shy, understated incrementalist suddenly becoming the Great Dissenter. In *Shelby County v. Holder*, she said that relieving errant states of the close scrutiny of the Voting Rights Act was like "throwing away your umbrella in a rainstorm because you are not getting wet." In *Hobby Lobby*, she was aghast that the court would deny costly contraception coverage to working women because of someone else's religious beliefs. In the *Ledbetter v. Goodyear Tire & Rubber Co.* equal pay case, she asked how her brethren could penalize the plaintiff, who only got evidence of the disparity from an anonymous note, for missing a 180-day filing deadline given that salaries are kept secret. One person whose eyes were opened was Barack Obama. His first piece of legislation in 2009 was the Lilly Ledbetter Fair Pay Act.

Becoming the Notorious RBG

Ginsburg's womansplaining caught the attention of New York University law student Shana Knizhnik, who uploaded Ginsburg's dissents to Tumblr. Overnight, a younger generation of women, and their mothers and grandmothers, were reminded of what Ginsburg had done for them. Knizhnik joined with reporter Irin Carmon to write *Notorious RBG: The Life and Times of Ruth Bader Ginsburg*. The justice was soon a recurring character on *Saturday Night Live*, with a hyperkinetic Kate McKinnon issuing blistering "Ginsburns." The justice's 2016 memoir, *My Own Words*, was a New York *Times* bestseller. There were more books — adult, children's and coloring. In 2018, Hollywood released a major motion picture, *On the Basis of Sex*, and the documentary *RBG*, which won an Emmy. Store shelves groan with merch: mugs (you Bader believe it), onesies (The Ruth will set you free), tote bags, bobblehead dolls, and action figures, one of the latest from her cameo in *Lego Movie 2*.

All this late-arriving fame rested uneasily on the shoulders of Ginsburg, who accepted it with dignity and took some pleasure at grandchildren's shock that "so many people want to take my picture." She kept a large supply of Notorious RBG T-shirts as a party favor for visitors.

At the heart of Hollywood's treatment of Ginsburg wasn't only the case Marty and his wife worked on together—an appeal of an IRS ruling—but a marriage of extraordinary compatibility and mutual support. After he recovered from cancer and had become a sought-after lawyer, he eagerly took on his share of domestic duties, which included feeding the children since, according to former Solicitor General Ted Olson, "Ruth wanted nothing whatsoever to do with the kitchen." Marty was the fun parent (Ginsburg joked at her confirmation hearing that the children kept a log called "Mommy Laughed") and a big-hearted host who happily roasted "Bambi," Ruth's name for whatever Scalia, her opera buddy, bagged on his last hunting trip. The pair were the subject of an actual comic opera, *Scalia/Ginsburg*, in which one scene depicts the over-

emoting Scalia, locked in a dark room for excessive dissenting, and Ginsburg descending through a glass ceiling to rescue him.

A close observer of their marriage once said that neither Ginsburg would be who they were without the other. Marty once joked about being second banana: “As a general rule, my wife does not give me any advice about cooking and I do not give her any advice about the law. This seems to work quite well on both sides.” De Hart reprints the letter Marty put in a drawer in the bedside table as he was dying from a recurrence of his cancer. He was the “most fortunate” part of her life.

Marty lived to see his wife recognized beyond what the two imagined when they agreed to marry and be lawyers together, but died just before a slight she suffered for following him to New York was righted. In 2011, she was awarded an honorary degree from Harvard Law that Dean Griswold had denied her for taking her last credits at Columbia.

The longer she lived, the wider her reach and the deeper the appreciation for her years on the bench. At the opening concert of the National Symphony Orchestra in Sept. 2019, Kennedy Center chair David Rubinstein introduced the dignitaries in the audience. When he got to the justice, women rose to applaud her. Then, the men quickly joined in until everyone in the hall was standing, looking up at the balcony, cheering and whistling, as if they’d come to tell her that they knew what she had done for them, not to hear Shostakovich’s Piano Concerto #2.

This wasn’t an audience of liberals, but a cross-section of the capital touched by a once-young lawyer who saw unfairness and quietly tried to end it during her 60 years of public service.

Throughout the decades, Ginsburg quietly persisted—through discrimination she would seek to end, through the death of Marty, through more illness and debilitating treatments than any one

person should have to endure—without complaint, holding on and out, until sheer will was no longer enough.

Correction, Sept. 24

The original version of this story contained a number of errors that have been corrected. To celebrate Ginsburg's 86th birthday, her fans did planks, not push-ups. Ginsburg's start at the ACLU came after Gloria Steinem and Betty Friedan began their work, not concurrently. When Ginsburg began working for the ACLU, she was 39, not 37. When she missed a court session in 2019, it was for the first time in 25 years, not 26, and she had had two nodules removed, not three. Ginsburg said that her husband was the first man who cared that she had a brain, not who loved her for her brain; her quip about a woman having it all was also paraphrased. When Martin Ginsburg had cancer, she gathered his class notes and typed his papers, but did not personally attend his classes. While she learned Swedish to study civil procedure in Sweden, her book on the topic was in English. She advised the Women's Rights Law Reporter, *rather than founding it. On the Supreme Court, she often asked the first question during arguments, but not the majority of the time across all cases; she sometimes read her dissents aloud before Sandra Day O'Connor retired; and her position in* Hobby Lobby *about imposed religious beliefs was paraphrased. Steve Mnuchin did not produce* The Lego Movie 2. *Additionally, the friend who observed that Martin and Ruth Ginsburg would not be who they were without the other was not a Supreme Court Justice.*

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‘This Resets the Race.’ Why Trump’s Move to Fill the Supreme Court Vacancy Raises the Election’s Stakes

Molly Ball is the national political correspondent at TIME, based in the Washington, D.C. bureau. She covers campaigns, the White House, political personalities and policy debates across America. She has received numerous awards for her political coverage, including the Dirksen Award for Distinguished Reporting of Congress, the Gerald R. Ford Prize for Distinguished Reporting on the Presidency and the Toner Prize for Excellence in Political Reporting. She is the author of Pelosi, a bestselling biography of the first woman Speaker of the House.

There are many theories about why Donald Trump won the presidency, but Mitch McConnell gets some of the credit. In February 2016, Supreme Court Justice Antonin Scalia died, paving the way for then-President Obama to replace him with a jurist who would pull the court left. Trump had not yet wrapped up the GOP nomination, and many conservatives were skeptical of the former Democrat. McConnell, the Senate Republican leader, refused to

hold hearings on Obama's court nominee, arguing the winner of the election should fill the seat.

Democrats deplored the obstruction and predicted voters wouldn't tolerate it. But the judicial opening was a profound motivator for conservatives—especially after Trump, in a novel move, issued a list of conservative jurists from which he said his nominees would be selected. In exit polls, 1 in 5 2016 voters said the Supreme Court was their top issue, and 56% of those supported Trump.

Four years later, the death of liberal icon Ruth Bader Ginsburg has given Trump and McConnell an opportunity to pad the court's conservative majority. But the political consequences are less obvious—and the procedural shoe is on the other foot. Though Ginsburg reportedly expressed a dying wish that she not be replaced until "a new President" takes office, McConnell waited just over an hour after her death became public to announce that the Senate would vote on Trump's nominee. All but two GOP Senators quickly fell into line, their past objections to election-year appointments suddenly forgotten. Trump plans to name his pick on Sept. 26, less than six weeks before Election Day, with voting already under way.

The last-minute court fight ratchets up the drama and stakes of this fractious election year. Democrats and Republicans alike believe the court could again be a decisive issue in the presidential race. But the implications go far beyond who wins in November. If Republicans succeed in confirming Trump's nominee, six of the court's nine votes will be in conservative hands. In the coming months alone, the new Justice could be a deciding vote on pending cases to strike down the Affordable Care Act and allow faith-based charities to deny services to same-sex couples, as well as a flurry of emergency election-related cases. In the coming years, cases on abortion, affirmative action, immigration, voting rights and other key issues are likely to reach the court's docket.

One legacy of the battle over Ginsburg's seat may be the blow it inflicts on the institution. "There's certainly enough blame to go around over the past two decades on this issue," as both Democrats and Republicans have sought to manipulate court appointments to their advantage, says former Republican Senator Jeff Flake, a Trump critic. But Republicans jamming a last-minute Supreme Court nomination through the Senate "would escalate it even further. And if we get to a point where there's court packing or anything else, then that is real, long-term damage."

A President elected with a minority of the vote, backed by Senators representing a minority of the public, using procedural hijinks to cement a judiciary that will shape American life: to many, the prospect amounts to a subversion of democracy and a clear sign that the structures of government are badly broken. Some Democrats, including prominent elected officials, say that if their party wins the White House and Congress, they should make big changes: eliminating the Senate filibuster; adding Washington, D.C., and Puerto Rico as states; and expanding the size of the Supreme Court, adding two or more additional Justices to compensate for the ones "stolen" from their party—ignoring the squawks of the GOP just as Republicans ran roughshod over them. In the meantime, Democrats are girding for the nightmare scenario, in which the unelected court installed through minoritarian means is called upon to resolve a disputed 2020 election—and hands a second term to a President who never once won the popular vote.

In the hours after Ginsburg's death, the steps of the Supreme Court became an impromptu memorial. Flowers and candles mingled with handmade signs as anguished liberals paid tribute to their heroine. Sadness mixed with a sense of panic. "It's like the emergency light, right?" says Lauren Acker, a 29-year-old D.C. resident. "Anybody who believes that what we're currently working with is not a functioning system of government, it is now,

as it always has been, our responsibility to yell louder, fight harder and educate everyone we can."

Within days, the online Democratic donor platform ActBlue reported processing $200 million in donations, shattering records. Democratic strategists predicted the court fight would energize their voters, underscoring the stakes for partisans who are not as enthusiastic about Democratic nominee Joe Biden as hardcore Republicans are about Trump. "Our game plan remains the same. And our game plan is: we take nothing for granted," Tom Perez, chair of the Democratic National Committee, tells TIME.

Instead of signing on to divisive ideas like court packing, Biden cast the fight in terms of health care, which Democrats see as a winning issue. A week after Election Day, the Supreme Court is scheduled to hear a case brought by a group of Republican attorneys general, and backed by the Department of Justice, that could result in the elimination of the Affordable Care Act. "In the middle of the worst global health crisis in living memory, Donald Trump is at the Supreme Court trying to strip health coverage away from tens of millions of families and to strip away the peace of mind from more than 100 million people with pre-existing conditions," Biden said.

The political valence of the court has shifted since 2016, making it as much—or more—of a galvanizing force on the left as it has long been on the right. A recent CNN poll found 47% of Biden supporters considered the Supreme Court "extremely important," compared with 32% of Trump supporters. In 2018, the bitter fight over the nomination of Justice Brett Kavanaugh on the eve of the midterm elections may have helped power Democrats to the House majority.

This year, the court vacancy may shape the race for the Senate, where Republican control is at risk. Senator Susan Collins of Maine already faced her constituents' ire for her crucial vote to

confirm Kavanaugh, which tarnished her brand as an independent-minded Republican. Within a day of Ginsburg's passing, Collins said she did not believe the Senate should vote on a replacement prior to the election. Senator Lisa Murkowski of Alaska, a frequent Trump critic who is not up for re-election this year, joined Collins in opposing a pre-election confirmation vote.

But other GOP Senators calculated they had more to lose by disappointing their own partisans than they might gain by sticking to the precedent set in 2016. Senators Cory Gardner of Colorado, Martha McSally of Arizona, Joni Ernst of Iowa, Thom Tillis of North Carolina and Lindsey Graham of South Carolina, each facing a tough re-election fight, all quickly supported McConnell's gambit, waving away charges of hypocrisy. ("I want you to use my words against me," Graham said in 2016. "If there's a Republican President … and a vacancy occurs in the last year of the first term, you can say Lindsey Graham said, 'Let's let the next President, whoever it might be, make that nomination.'" The clip is now airing in TV ads.) The Senators sought instead to use the nomination to rally Republican voters behind them.

At Trump's rallies, a new chant emerged: "Fill that seat!" Republicans predict the court battle will shift attention from Trump's mishandling of the COVID-19 pandemic and its economic toll. "This helps Trump, and it helps Republican Senate candidates," GOP donor Dan Eberhart argues. "We are not running solely on the COVID response and the economy anymore—this resets the race." A White House official predicts the fight will heighten the volatile atmosphere in a country already contending with a pandemic, a recession, racial justice protests and natural disasters. "You think what a full-on war Kavanaugh was," the official says. "It's going to be like that times 1,000."

Trump is trailing in the polls and has few legislative accomplishments to his name other than his 2017 tax cut. Key promises—a border wall, a health care plan, an infrastructure bill—

remain unfulfilled. Seeing this, McConnell began telling confidants that he was in the “personnel business”; the massive number of judicial appointments he’s pushed through the Senate have become the accomplishment he touts. Trump may lose the presidency, McConnell may lose the Senate—but the judiciary they shaped will outlast them both. That, in the end, may be the only electoral calculation that matters.

—With reporting by Alejandro de la Garza and Anna Purna Kambhampaty /New York; and Alana Abramson, Brian Bennett, Tessa Berenson, Mariah Espada and Lissandra Villa/Washington

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